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Case Number: 25STCV30010 Hearing Date: June 26, 2026 Dept: 224

Begzadeh v. Bardales et al.,

TENTATIVE RULING

Defendants' special motion to strike is DENIED. Because Defendants Daniel Bardales and Dead Presidents, LLC have not demonstrated that any of the challenged causes of action arises from activity protected under Code of Civil Procedure section 425.16(e), the motion fails at the first prong.

Introduction

On October 14, 2025, Plaintiffs filed the Verified Complaint in this action, asserting eleven causes of action arising out of a commercial signage contract and conduct that followed the breakdown of that contract.

On March 30, 2026, Defendants Daniel Bardales and Dead Presidents, LLC filed the instant Special Motion to Strike, directed at the fifth through tenth causes of action.

On May 19, 2026, Plaintiffs filed an opposition, together with the Declaration of Ramiel Thomas Begzadeh and supporting exhibits.

On June 3, 2026, Defendants filed a reply.

Legal Standard

Code of Civil Procedure section 425.16 provides in pertinent part as follows:

“(b)(1) A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.”

(Code Civ. Proc. 425.16(b)(1).) A special motion to strike is authorized against SLAPP suits (Strategic Litigation Against Public Participation), i.e., “lawsuits brought primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (Code Civ. Proc. 425.16(a).) An anti-SLAPP motion may be used to strike allegations of protected activity, even if the motion does not defeat the entire cause of action. (*Baral v. Schnitt* (2016) 1 Cal.5th 375, 385-390, disapproving *Mann v. Quality Old Time Service, Inc.* (2004) 120 Cal.App.4th 90 and its progeny).

In assessing a defendant’s section 425.16 special motion to strike, the court must engage in a two-step process. (*Shekhter v. Financial Indem. Co.* (2001) 89 Cal.App.4th 141, 150.) First, the court must decide whether the defendant has met the threshold burden of showing that the plaintiff’s cause of action arises from the defendant’s constitutional rights of free speech or petition for redress of grievances. (*Id.*) This burden may be met by showing the act which forms the basis for the plaintiff’s cause of action was an act that falls within one of the four categories of conduct set forth in 425.16(e).

The four categories, generally speaking, include: “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16(e). Speech or conduct that falls under categories (1) and (2) does not have to be connected to a public issue, while speech and conduct falling under categories (3) and (4) must be in connection with a public issue. (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1117 (differentiating CCP 425.16, subdivision (e), clauses (1) and (2) from same section and subdivision, clauses (3) and (4)); *Commonwealth Energy Corp. v. Investor Data Exchange, Inc.* (2003) 110 Cal.App.4th 26, 32 (citing *Briggs*).)

If the defendant meets the initial burden, the burden then shifts to the plaintiff to establish a probability that the plaintiff will prevail on the claim. (*Shekhter supra* 89 Cal.App.4th at 151.) To meet this burden, the plaintiff “must demonstrate that the complaint is both legally sufficient and supported by a prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89; internal quotations omitted.)

Special Motion to Strike

Defendants Daniel Bardales and Dead Presidents, LLC move under Code of Civil Procedure section 425.16 to strike the fifth through tenth causes of action in the Verified Complaint: defamation (libel per se), defamation (slander per se), harassment under Civil Code section 527.6, intentional infliction of emotional distress, intentional interference with prospective economic relations, and negligent interference with prospective economic relations.

First Prong

Defendants first argue that Plaintiff’s claims arise from protected activity under section 425.16.

“To prevail on an anti-SLAPP motion, the movant must first make ‘a threshold showing the challenged cause of action’ arises from an act in furtherance of the right of petition or free speech in connection with a public issue.” (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 192.) “A claim arises from protected activity when that activity underlies or forms the basis for the claim.” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062.) This burden may be met by showing the act which forms the basis for the plaintiff’s cause of action was an act that falls within one of the four categories of conduct set forth in 425.16(e).

Whether the anti-SLAPP statute applies is determined by the “principal thrust” or “gravamen” of the claim and therefore the statute cannot be invoked for allegations of protected activity that are only incidental to a cause of action based on unprotected activity. (*Martinez v. Metabolife Int’l, Inc.* (2003) 113 Cal.App.4th 181, 185.)

Defendants rely exclusively on Code Civ. Proc. sections 425.16(e)(3) and (4). They do not contend that the conduct was a statement made before, or in connection with an issue under review by, any official proceeding. The analysis therefore turns on whether Defendants' speech was made "in a place open to the public or a public forum in connection with an issue of public interest," or constituted "other conduct in furtherance of" free speech "in connection with a public issue or an issue of public interest." (Code Civ. Proc. § 425.16(e)(3), (4).) Both categories require a connection to an issue of public interest. (Briggs, *supra*, 19 Cal.4th at 1117.)

The Court agrees that the forum element is satisfied. Plaintiffs concede that public sidewalks, generally accessible websites, and social media applications are public forums for purposes of the statute. (Opposition, 2:19-23.) However, the location of the challenged speech is not dispositive. The public-forum element and the public-interest element are distinct, and Defendants must satisfy both. (Weinberg v. Feisel (2003) 110 Cal.App.4th 1122, 1132.)

The dispositive question is whether the challenged speech was made in connection with an issue of public interest. Section 425.16 does not define

the term, and the court construes it in light of the statute's purpose. (Grenier v. Taylor (2015) 234 Cal.App.4th 471, 481.) Three principles guide the inquiry. The asserted public interest must be more than a matter of mere curiosity. The matter must concern a substantial number of people rather than a narrow circle of private persons. And there must be a close connection between the challenged statement and the asserted public interest, because the assertion of a broad and amorphous public interest is not sufficient. (Weinberg, *supra*, 110 Cal.App.4th at 1132-1133; Rivera v. First DataBank, Inc. (2010) 187 Cal.App.4th 709, 716.)

Defendants' theory is that any statement concerning a large company that supplies food to California markets is a matter of public interest. That argument is overbroad. It does not describe the actual content of the challenged speech. The Court must focus on the specific conduct in dispute, not on society's generalized interest in the broad subject matter to which a defendant attempts to tether that conduct. (World Financial Group, Inc. v. HBW Insurance & Financial Services, Inc. (2009) 172 Cal.App.4th 1561, 1570.)

Examining the challenged speech itself, the gravamen of the conduct is a private commercial dispute over a signage invoice. The signs depicted in Plaintiffs' evidence display Plaintiff Begzadeh's photograph and full name with the word "CROOK" and the statement that Begzadeh "OWES BSPSIGN.com \$23,266," alongside Defendant Business Sign Pros' own web address and the Dead Presidents LLC social media handle. (Begzadeh Decl., Ex. A.) The text message sent to Wells' accountant likewise concerned what Plaintiffs allegedly owe and Defendants' demand for payment. On their face, these communications do not address food safety, food quality, business practices affecting consumers, or any matter bearing on Plaintiffs' role in food supply. They communicate Defendants' position that Plaintiffs owe Defendants money under the parties' contract, and they seek to coerce payment of that contested sum through public shame and embarrassment. The specific dollar figure, tied directly to Defendants' own business, confirms that the principal thrust of the speech is the collection of a private debt.

A private creditor's effort to publicly shame an alleged debtor into paying a disputed invoice does not become a matter of public interest merely because the debtor operates a sizeable business.

Defendants' reliance on Cross v. Cooper (2011) 197 Cal.App.4th 357, 372, does not alter this conclusion. Cross recognizes that matters of public interest may include activities involving private persons and entities, especially when a large and powerful organization may affect the lives of many individuals. That principle is sound, but it requires a genuine connection between the challenged statement and a matter of public concern. The challenged statements here concern a \$23,266 collections dispute between two private businesses. Defendants have not shown that this dispute is of concern to any substantial segment of the public beyond the parties themselves.

Defendants' remaining arguments do not bear on whether the conduct is protected. Defendants contend at length that their statements are nonactionable opinion, that no reasonable person would treat the pronouncements of an actor in a clown costume as fact, and that internet postings are presumed to be opinion. Those contentions go to whether the statements are actionable as defamation, which is a second-prong question concerning Plaintiffs' probability of prevailing. They do not

establish that the conduct falls within a protected category under section 425.16(e). The characterization of speech as "opinion" does not supply the public-interest connection that subdivisions (e)(3) and (e)(4) require.

Defendants have therefore failed to carry their threshold burden under the first prong of section 425.16 as to any of the challenged causes of action. The principal thrust and gravamen of the fifth through tenth causes of action is a private commercial dispute and the campaign of conduct Defendants undertook to collect a contested debt. That conduct is not connected to an issue of public interest within the meaning of the statute.

Because the first prong is not satisfied, the Court need not reach the second prong regarding Plaintiffs' probability of prevailing. (*Durkin v. City and County of San Francisco* (2023) 90 Cal.App.5th 643 ["If the moving party fails to satisfy the first prong, the motion is properly denied without proceeding to the second prong."].)

Conclusion

Defendants' special motion to strike is DENIED. Because Defendants Daniel Bardales and Dead Presidents, LLC have not demonstrated that any of the challenged causes of action arises from activity protected under Code of Civil Procedure section 425.16(e), the motion fails at the first prong.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.